Customer Confidential

RECRUITMENT SERVICES AGREEMENT

MADE BY AND BETWEEN

INTALENT (PVT) LTD

AND

ACCEL AUTOMOBILES (PVT) LTD

October 28, 2024

No. 620/8/1/1, Nawala Road, Rajagiriya, Sri Lanka
+94 77 731 5731
heshani@intalent.asia
www.intalent.asia

This Recruitment Services Agreement is made and entered into on this October 28, 2024 by and between, Accel Automobiles (Pvt) Ltd, a company duly incorporated in Sri Lanka under the Company Act No. 7 of 2007 bearing registration number PV127952 and having its registered office at No:171 1/3, Nawala Road, Nugegoda (hereinafter called and referred to as the 'Company,' which term or expression, as herein used, shall, where the context so requires or admits, mean and include the said Accel Automobiles (Pvt) Ltd and its successor or successors and permitted assigns) of the **ONE PART**.

AND

INTALENT (PVT) LTD, a company duly incorporated in the Democratic Socialist Republic of Sri Lanka under the Companies Act No. 07 of 2007, bearing registration number PV00200570, and having its registered office at No. 24, Wijerama Mawatha, Colombo 07 (hereinafter called and referred to as 'INTALENT,' which term or expression, as herein used, shall, where the context so requires or admits, mean and include the said INTALENT (PVT) LTD and its successor or successors and permitted assigns) of the **OTHER PART**.

RECITALS

1. WHEREAS, the Company is engaged in the business of Distribution / Automobile and has sought the professional assistance of INTALENT to recruit suitable candidates for the vacancy/vacancies of the Company;
2. WHEREAS, INTALENT possesses an in-depth understanding, know-how, and experience in rendering recruitment services and has specialized in that area.

NOW THIS AGREEMENT THEREFORE WITNESSETH that in consideration of each of the parties hereto doing, observing and performing the respective terms, conditions, covenants, stipulations and obligations contained in this Agreement to be respectively done, observed and performed by each of them, the parties hereto hereby agree as follows:

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1. DEFINITIONS

1.1.	"Company"	Means "Accel Automobiles (Pvt) Ltd"
1.2.	"INTALENT"	Means "InTalent (Pvt) Ltd"
1.3.	"Term"	Means the period of validity of this Agreement as provided for in clause 4 hereof
1.4.	"Service Fee"	Means the fees to be paid to INTALENT as provided for in clause 7 hereof

2. APPOINTMENT OF INTALENT

2.1. The Company hereby appoints INTALENT to render Recruitment Services as provided for in this Agreement during the Term.

2.2. The appointment in clause 2.1 above shall be a non-exclusive appointment where the Company has the freedom to obtain the services of other similar service providers as well.

3. SCOPE OF THE SERVICES OF INTALENT

3.1. Intalent provides services to the Company during the Term of this Agreement shall be as follows:

3.1.1. Identify appropriate persons through various means including but not limited to advertising, social media, candidate databases and headhunting, to fill the vacancies at the Company;

3.1.2. Attending to sourcing of suitable candidates, reference checks, background checks and advertising on the INTALENT owned social media platforms (such as INTALENT profiles maintained on Facebook and LinkedIn);

3.1.3. Reasonably inquiring and confirming the qualifications, experience and background of the candidates based solely on the information contained

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in the CVs provided to INTALENT by the candidates for assessment of the candidates in good faith;

3.1.4. Assessment of selected candidates in terms of their skills and competencies over an in- house interview and shortlisting candidates for vacancies of the Company. As per the company's request, we are sharing CVs of the shortlisted candidates for the company's selection;

3.1.5. Coordinate and arrange interviews with the candidates selected by the Company at locations and times selected by the Company.

4. TERM

4.1. This Agreement shall commence on the date of execution and shall remain in full force and effect until terminated by either party as provided for in Clause 16 hereof.

5. OBLIGATIONS OF INTALENT

5.1. INTALENT shall:

5.1.1. Provide the following replacement services:

5.1.1.1. INTALENT agrees to provide a replacement candidate in the event the candidate had ceased employment within the first three (3) months of employment for any reason other than termination by the Company or frustration of the employment contract due to matters beyond the control of both the Company and the candidate (which includes but is not limited to the death of a candidate). For the avoidance of any doubt the Parties agree that INTALENT shall not be refused or delayed payment by the Company at any event other than the candidate leaving

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employment voluntarily by tendering resignation on his own volition.

5.1.1.2. INTALENT will provide a replacement candidate / refund only when:

5.1.1.2.1. The Company informs INTALENT that the candidate had ceased employment within a period of four (4) working days from the employee ceasing employment and provides the list of candidates from the already provided CVs or new CVs; and

5.1.1.2.2. The Company conducts the interviews for the replacement candidate within three (3) working days from the date on which INTALENT provided the replacement candidate information to the Company;

5.1.1.2.3. INTALENT will provide the services replacement services within a period of two (2) months provided the Company timely fulfills the requirements set out in clause 5.1.1.2.1 and 5.1.1.2.2 above.

5.1.1.2.4. INTALENT will refund service chargers, if INTALENT failed to find a right profile according to the given time period.

5.1.2. The Parties explicitly agree that INTALENT shall not be obligated to refund any fees or provide replacement candidates to the Company if the Company terminates employment with a candidate for any reason whatsoever.

6. OBLIGATIONS OF THE COMPANY

6.1. The Company shall:

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6.1.1. shortlist the candidates provided to the Company by INTALENT within a period not exceeding four (4) working days from the date on which the short-listed candidates have been provided by INTALENT to the Company;

6.1.2. Appoint an officer of the Company for all communications with INTALENT.

6.2. In any event a candidate included in the list of candidates provided to the Company by INTALENT had applied for the same position by means other than through INTALENT, the Company shall inform of the same within one (1) working day from the date the short-listed candidates have been provided to the Company by INTALENT;

6.3. Upon selection of a candidate provided by INTALENT for employment, the Company shall confirm the same to INTALENT in writing prior to the date of employment of the candidate with the following information:

6.3.1. Basic salary of the employee;

6.3.2. Fixed allowances of the employee;

6.3.3. Other payments and benefits to which the employee shall be entitled to.

6.3.4. Minimum salary band would be LKR 50,000.

7. CONSIDERATION

7.1. The company shall pay the following fees to INTALENT:

7.1.1. Pay a Service fee in respect of:

7.1.1.1. All candidates who have been selected for the interview process or screen selected for the interview process by the Company, in any capacity, within a period of twelve (12) months from the date the short-listed candidates have been provided to the Company by INTALENT in terms of clause 3.1; and

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7.1.1.2. All candidates recruited by any party in any capacity, upon being introduced by the Company or by any person directly connected to the Company who was privy to the short-listed candidate provided by INTALENT, with or without knowledge of the Company, within a period of 12 months from the date the short-listed candidates have been provided to the Company by INTALENT in terms of clause 3.1.

7.1.1.3. The Fees to be paid to INTALENT for each of the candidates provided in clause 6.3. shall be a sum equivalent to the Gross Salary of the candidate for one (01) month, which shall consist of the Basic Salary, Allowances, Fixed Commissions and other fixed payments for which the employee may be entitled to

7.1.1.4. A non-refundable cover charge of LKR 5,000 shall be charged as an administration cost when signing the agreement.

7.1.1.5. The Service Fee shall be paid to INTALENT (not disputed in good faith) within a period of ten (10) days from the date of the first day of work by the successfully hired candidate and once an invoice has been submitted to the Company by INTALENT. It shall be the responsibility of INTALENT to submit the invoices to the Company.

8. CONFIDENTIALITY

8.1. The existence as well as the terms and conditions of this Agreement, and any information exchanged between the Parties (including their respective representatives or advisors) pertaining to the business and the operation of the Company and INTALENT (all such information collectively referred to herein as "Confidential Information"), shall be kept strictly confidential by each Party.

8.2. Either Party shall refrain from using in any form or disclose to any third party any Confidential Information unless explicitly authorized by the other Party in writing.

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8.3. The Parties shall ensure that their employees, directors, professional advisors and any other representatives of each Party to whom any such Confidential Information is entrusted comply with these restrictions.

9. RESTRICTIONS

9.1. The Company shall not directly communicate with any of the candidates provided by INTALENT at any time until prior to employment of the candidate, all communications with the candidates shall be through INTALENT;

9.2. The Company shall consider refund, in a situation where INTALENT failed to do the replacement during the given timeline. INTALENT will refund 80% of the charge.

9.3. INTALENT bears no liability for any inaccurate information supplied by candidates in their CVs and/or to the Company/INTALENT, nor for any decisions made by INTALENT based on such inaccuracies. Nonetheless, at the company's request, INTALENT will conduct reference checks on the candidate's two most recent employers once the candidates are shortlisted for the final rounds of interviews.

9.4. INTALENT shall not be responsible for the competence, conduct, performance and behavior of the candidates and for any loss, damage, cost and expense suffered by the Company due to any act/omission of the Candidate at any time.

10. NOTICES

10.1. All notices and other communications made or to be made under this Agreement shall be effective upon receipt and shall be given in writing by telefax or courier to the addressees listed below:

COMPANY Address: No:171 1/3, Nawala Road, Nugegoda

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	Phone:	771125969
	Email:	shehan@accel.lk
INTALENT	Address:	620/8/1/1, Nawala Road, Rajagiriya, Sri Lanka.
	Phone:	+94 777315731
	Email:	heshani@intalent.asia

11. ENTIRE AGREEMENT

11.1. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes any agreement or understanding that may have been concluded between the Parties prior to the date of this Agreement.

12. THIS AGREEMENT SUPERSEDES OTHERS

12.1. This Agreement supersedes and replaces any and all prior agreements between the Parties regarding the scope of this Agreement whether written or oral. This constitutes the entire understanding between the parties hereto and shall not be modified or amended except in written form signed by all parties to this Agreement.

13. SEVERABILITY

13.1. If at any time any provision of this Agreement or any part thereof is or becomes invalid or unenforceable, then neither the validity nor the enforceability of the remaining provisions or the remaining part of the provision shall in any way be affected or impaired thereby. The Parties agree to replace the invalid or unenforceable provision or part thereof by a valid or enforceable provision which

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shall best reflect the Parties' original intention and shall to the extent possible achieve the same economic result.

14. AMENDMENTS

14.1. This Agreement may be amended only in writing by an instrument signed by the Parties.

15. WAIVER

15.1. No waiver by a Party of a failure of any other Party to perform any provision of this Agreement shall operate or be construed as a waiver in respect of any other or further failure whether of a similar or different character.

16. TERMINATION

16.1. This Agreement may be terminated by either Party by giving a written notice of not less than three (3) months to the other party;

16.2. Each party shall pay to the other all payments due to be settled by such party to the other within the notice period provided for in clause 16.1 hereof.

17. DISPUTE RESOLUTION

17.1. Any dispute arising from, out of or in connection with this Agreement shall be settled amicably. If the Parties fail to arrive at an amicable settlement within thirty (30) calendar days from the date of notice of dispute, shall be referred to courts in Sri Lanka.

18. JURISDICTION

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18.1. This Agreement shall in all respects be governed by and construed in accordance with laws of Sri Lanka and shall be subject to the jurisdiction of courts in Sri Lanka.

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EXECUTION PAGE TO FOLLOW

IN WITNESS WHEREOF the Parties have placed their signature hereto and to five other of the same tenor and date at Colombo on this October 28, 2024.

Signed by Shehan Manatunga (Director) as authorized signatory of Accel Automobiles (Pvt) Ltd

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WITNESSES:

1. Roshan Nugawela
Director
Accel Automobiles (Pvt) Ltd

.....

Signed by Heshani Kaumadi, Director - Operations as authorized signatory of INTALENT (PVT) LTD

Intalent (Pvt) Ltd
Director

WITNESSES:

2. Shahla Kiyasdeen
Account Manager
INTALENT (PVT) LTD

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